

Division of Community Nutrition

<i>Subject:</i> Caretaker		<i>Policy:</i> PRR 02.1
<i>Reference:</i> CFR §246.7	<i>Effective:</i> August 1, 2025	Supersedes: August 15, 2016

I. Policy:

A parent or legal guardian may designate one (1) caretaker per Family ID number to certify an infant and/or child, to obtain and/or redeem WIC food benefits, and to attend nutrition education.

A caretaker may be any person 18 years of age or older who has detailed knowledge of the nutritional needs and eating habits of the infant / child. A caretaker shall be designated only when the local agency cannot accommodate the needs of the parent. In the absence of a parent or legal guardian, a caretaker shall provide reasonable documentation of their status as primary caregiver. The local agency will verify proof of identification of the caretaker in accordance with CRT 03.0, prior to signing the Caretaker Designation form, WIC-311. Caretakers under the age of eighteen may only be approved at the discretion of the CPA.

The caretaker shall accept full legal responsibility in understanding and adhering to program policies and guidelines. As primary caregiver, the caretaker will be required to attend all nutrition and certification appointments as mandated by relevant policies. The authority to implement this portion of the policy will be granted individually to local agencies by the SWO.

The designation of a caretaker is a privilege, not a right. The parent is always encouraged to be the primary recipient of all WIC benefits.

II. Procedure:

A. Designation of a caretaker shall be determined in one of two ways:

- 1) A parent or legal guardian's declaration of hardship, or
- 2) The caretaker providing reasonable documentation of role as such in the absence of parent/legal guardian

B. Local agency personnel shall discuss the option of designating a caretaker if the participant, parent/legal guardian indicates hardship such as the following:

- 1) The participant/parent / legal guardian expresses difficulty with attending appointments for certification / subsequent certification, / nutrition education, and/or food benefits issuance during established alternative and regular hours due to conflict of work /school schedules, or incarceration.
- 2) The participant/parent / legal guardian expresses difficulty with attending the local agency for certification/re-certification appointments, WIC benefits,

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nutrition education, and/or food benefits issuance during established alternative and regular hours due to lack of transportation.

- 3) The participant/parent / legal guardian expresses difficulty with attending the local agency certification/re-certification, WIC benefits, nutrition education, and/or food benefits issuance during established alternative and regular hours due to infant/child residing with family member/caretaker.
 - 4) The parent / legal guardian has been sanctioned from the program and a caretaker is needed for the infant or child to still receive benefits.
- C. In the absence of a parent or legal guardian, a caretaker may be designated for an infant or child to receive benefits. The Caretaker shall provide reasonable documentation to substantiate their relationship with the infant/child and their role as primary caretaker. Reasonable documentation may include but is not limited to the following:
- 1) Signed Caretaker Designation Form, WIC-311, indicating designation of caretaker that may be obtained prior to first certification/visit
 - 2) Signed and witnessed letter from legal guardian designating a caretaker and reason for legal guardians' difficulty with attending enrollment, subsequent certification, nutrition education, and food benefit issuance appointments for an infant/child
 - 3) Documentation of legal guardians' enrollment, residence, or confinement in hospital treatment programs, shelters, penal institutions or other institutions. Whenever possible the caretaker should supply documentation that contains both entry and exit date from such an institution that will be placed in the participant's file.
- D. The local agency shall determine if the caretaker has knowledge of the nutritional needs and eating habits of the infant or child and is involved with feeding the infant or child on a regular basis. To qualify, the caretaker shall have knowledge of the following example characteristics about the infant / child:
- 1) Food Preferences
 - 2) Feeding Patterns
 - 3) Feeding Frequency
 - 4) Size of Portion Preferences
 - 5) Interaction with Medications
 - 6) Reaction with allergies
 - 7) Number of Meals

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- E. The local agency shall explain the Caretaker Designation form to the parent or caretaker. By signing the WIC-311 the parent or caretaker confirms that s/he understands the following:
- 1) The caretaker is able to certify the infant / child
 - 2) The caretaker is able to obtain and redeem WIC food benefits
- F. The caretaker shall share all nutrition education and health care referrals with the parent.
- G. In the absence of the parent/legal guardian the caretaker shall assume legal responsibility and adhere to the rules and regulations of the program. If a parent/legal guardian is present to designate authority to a caretaker both parties shall assume equal legal responsibility including action that would terminate the parent/caretaker from the program.
- H. A caretaker can designate a proxy for nutrition education if and when they are not able to be present.
- I. A claim shall be established against the caretaker for the full value of program benefits improperly obtained or disposed by the caretaker.
- J. After the parent signs the WIC-311, if the parent and caretaker are not present at the same time, the caretaker shall visit the local agency and sign the WIC-311.
- K. The local agency shall verify that the Caretaker is 18 years of age or older, unless approved by the CPA.
- L. The local agency shall review proper WIC food benefits usage procedures with the caretaker and provide a WIC Participant Handbook to the caretaker.
- M. The signature by local agency personnel on the Caretaker Form confirms that the assessment has been completed and the person qualifies.
- N. The caretaker's name shall be listed in the Caretaker section of the Family Demographics screen section in Crossroads.
- O. The WIC-311 shall be signed and scanned into the family's record.
- P. A designated caretaker may sign subsequent Rights and Responsibilities Form, WIC-310, on behalf of the parent.
- Q. A caretaker shall remain in effect until the parent / legal guardian terminates the caretaker but may be changed as necessary.

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- 1) For a caretaker change, the parent / legal guardian shall complete a new Caretaker Designation Form, WIC-311
- 2) The parent / legal guardian shall sign the termination clause on the bottom of the Caretaker Designation Form, WIC-311, for the previous caretaker